

25LBCV01179 25LBCV01179

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-07-16

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LB%20%2CS27%2C07%2F16%2F2026

Source SHA-256: ee8ca8cf253f08e69c4d2ba61a3cef164e7fee5507d6d555219d837f8b08cff1

Case Number: 25LBCV01179 Hearing Date: July 16, 2026 Dept: S27

Plaintiffs, Adilene Sarahi

Hinostroza Aguayo, Melani Dayaren Hinostroza Aguayo, Jheilin Zayas, and Angel

Guerrero filed this action against Defendants, Portofino TIC I, LLC and its related entities for habitability violations and other landlord-tenant related claims.

Melani, Jheilin, and Angel are

minors, and are all appearing by and through their GAL, Adilene. The parties have agreed to a global settlement of the action, and seek court approval of the settlement at this time. The global settlement is in the amount of \$200,000. If the settlement is approved, \$1500 will be allocated to each of the three minors, who will in turn pay \$375 each as attorneys' fees. The remainder of the settlement will be allocated to their mother, who will pay all costs associated with the lawsuit and a 50% contingency fee.

The Court has reviewed the settlement and finds it is fair and reasonable. The Court understands that substantially more is being allocated to the parents because they were the ones in a contractual relationship with Defendants, and because they are the ones who bore the brunt of the problems with the unit. The Court also understands that the children did not suffer physical injuries as a result of the issues with their unit.

Petitioner proposes to place the funds in blocked accounts, which the Court also finds is fair and reasonable.

Pursuant to CRC 7.952, unless appearance is excused, the Court must hear from the petitioner and the minor children before it approves the

settlement. The minors are 17, 15, and one year old. The Court excuses the appearance of Angel, who is only one, but will require Melani (17) and Jheilin (15) to appear and testify prior to granting the petitions. If the Court is satisfied with their testimony, the Court will approve the settlement and process the proposed orders to approve the petitions (3) and place funds in blocked accounts (3).

The Court asks Counsel, Petitioner, and Plaintiff to make arrangements to appear remotely at the hearing on the petition. The parties are reminded that there is an OSC re: Dismissal (Settlement) on calendar concurrently with the hearing on the above petitions.